

26NNCV00055 26NNCV00055

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-18

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Case Number: 26NNCV00055 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO STRIKE ANSWER

Hearing Date: 9/18/26

CASE NO.: 26NNCV00055

CASE NAME: Tanya Smith, et al. vs. Deborah M. Kilgore, et al.

Moving Party: Plaintiff Tanya Smith

Responding Party: Defendant Deborah M. Kilgore

Notice: Sufficient

Ruling:

GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action. On January 5, 2026, plaintiffs Tanya Smith, Kim Zolina, and Vincent Taylor (collectively, Plaintiffs) filed a complaint against defendants Deborah M. Kilgore (Defendant) as well as Animal Am-Ergency Clinic of Pasadena, Craig Mohaghegh, the City of Pasadena, and Det. Derrick Carter alleging eight causes of action including battery, assault, and violations of the First Amendment. (see Complaint)

Defendant filed an untimely answer on May 26, 2026.

On June 9, 2026, Plaintiffs filed the instant motion to strike Defendant's answer. On September 3, 2026, Defendant filed an opposition. On September 10, 2026, Plaintiffs filed a reply.

LEGAL

STANDARD

The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437(a).)

Defendant must file a responsive pleading to the complaint within 30 days after summons is served on the defendant. (Code Civ. Proc., § 412.20(a)(3).) The court may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436(b).)

"Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc., § 435.5(a).) "The parties shall meet and confer at least 5 days before the date a motion to strike must be filed." (Code Civ. Proc., § 435.5(a)(2).)

DISCUSSION

Plaintiff seeks

to strike Defendant's answer on the grounds that it is untimely and Defendant did not seek leave of the Court. (Mot., p. 3.)

Meet and Confer

Here, Plaintiff declares

initiating meet and confer efforts via electronic mail. (Friedman Decl., ¶ 4.)

Plaintiff's counsel declares outlining the grounds for the motion to strike and that the parties agreed to meet on May 29, 2026. (Friedman Decl., ¶¶ 5-7.)

However, Plaintiff's counsel declares that Defense counsel indicated they may be in a deposition and no meet and confer ever took place. (Friedman Decl., ¶¶ 7-8.)

Defense counsel

challenges Plaintiff's characterization of meet and confer efforts and declares that he offered an alternative meeting window after indicating that the previously agreed upon time would not work. (Jacinto Decl., ¶¶ 5-6.) Defense counsel argues that it was Plaintiff's counsel who declined the alternative. (Jacinto Decl., ¶¶ 6, 9.)

The Court

admonishes the parties to engage in meaningful meet and confer efforts in the future.

Motion to Strike

Plaintiff

argues that Defendant's answer must be struck because Defendant was served by substitute service on January 31, 2026, making the date of service February 9, 2026. (Mot., p. 4.) Plaintiff argues that the deadline to file an Answer was therefore March 11, 2026, and Defendant filed their answer 76 days after this deadline. (Ibid.) Further, Plaintiff argues that Defendant failed to obtain the leave of court to file a late responsive pleading. (Ibid.) Alternatively, Plaintiff asks the Court to strike all of Defendant's affirmative defenses on the grounds that they are all legal conclusions. (Ibid.)

In

opposition, Defendant argues that she suffered an injury to her head on January 29, 2026, resulting in a brain bleed placing her in the ICU. (Opp., p. 2.)

Defendant argues that she had a long road to recovery due to the impaired cognitive function and striking her answer would punish her for a medical emergency beyond her control. (Ibid.) Defendant argues that the Court has discretion to strike a late-filed answer and should exercise its discretion to allow the late answer to proceed. (Ibid.) Further, Defendant argues that Plaintiff is using the wrong procedural tool to strike affirmative defenses and should have instead filed a demurrer. (Opp., pp. 2-3.) However, Defendant does not oppose and actually requests the court strike affirmative defenses 7 and 9. (Opp., pp. 3-4.)

In

reply, Plaintiff argues that Defendant concedes the late answer and asks the Court to ignore the statutory deadline based on an unadmitted medical narrative raised for the first time now. (Reply, p. 2.) Further, Plaintiff argues that Defendant asserts being hospitalized from January 29th until February 10th leaving one month to file a responsive pleading. (Reply, p. 4.) Plaintiff objects to the inclusion of Defendant's medical records as unsubstantiated hearsay provided without a declaration from Defendant or a treating physician. (Reply, pp. 4-5.) Lastly, Plaintiff argues that Defendant's affirmative defenses are properly subject to a motion to strike and must be stricken in their entirety. (Reply, p. 7.)

Here, the Court

is persuaded to strike Defendant's answer and encourage Defendant to seek leave of court through statutorily afforded channels. Defendant concedes the deadline had long lapsed at the time of filing the answer and asks the court to excuse the discrepancy in the interest of adjudicating the matter on the merits. (Jacinto Decl., ¶ 4.) In *Bank of Haywards v. Kenyon*, cited by Defendant, "appellant's answer was filed but one day late, and it set forth a meritorious defense. (*Bank of Haywards v. Kenyon* (1917) 32 Cal.App. 635, 637.) The Court in that case reasoned that under those circumstances Defendant should have been allowed to proceed with their answer. (Ibid.) However in that case Defendant filed the answer one day late rather than nearly 80 days late, that is an important distinction. Further, Plaintiff is correct in the characterization of Defendant's medical records as they are not accompanied by any sort of declaration or authentication verifying their identity. (Evid. Code, § 1271(c).) The Court sympathizes with the alleged medical emergency cited by Defendant but must

adhere to statutory deadlines especially when they have long lapsed.

Accordingly, the
motion to strike Defendant's answer is GRANTED.

CONCLUSION
AND ORDER

Plaintiff Tanya
Smith, Kim Zolna, and Vincent Taylor's motion to strike Defendant's Answer is GRANTED.

MOVING PARTY

shall

provide notice and provide a proposed order consistent with this ruling within
10 days from this date.